

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN
CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

**NOTICE OF COUNTER-APPLICATION FOR DECLARATORY
RELIEF**

TO: THE REGISTRAR OF THE HIGH COURT, WESTERN CAPE DIVISION, CAPE TOWN

AND TO: THE APPLICANT'S ATTORNEYS, DENEYS (JASON WHYTE —
jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that the Respondent hereby institutes a counter-application for the declaratory relief set out in **Part Q** of the Supplementary Answering Affidavit.

TAKE FURTHER NOTICE that this counter-application is **not conditional** upon the Applicant proceeding with its main application. The Respondent seeks the declaratory orders independently and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **160/2026**.

TAKE FURTHER NOTICE that the Respondent will move for an order in terms of the prayer contained in **Part R** of the Supplementary Answering Affidavit, read with the prayer below.

TAKE FURTHER NOTICE that the Respondent has elected to incorporate the counter-application in his answering papers, as permitted by **Rule 6(5)(e)** of the Uniform Rules of Court and the practice confirmed in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*.

TAKE FURTHER NOTICE that the Respondent will apply for an order that the counter-application be enrolled for hearing simultaneously with the main application, or on such other date as this Honourable Court may determine, and that in the event the main application is withdrawn, the counter-application shall proceed on its own.

DATED at CAPE TOWN on this 20th day of APRIL 2026.

WILBUR WILLIAM MATTHEE

Respondent (acting in person)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: The Registrar, High Court, Western Cape Division, Cape Town

CC: Deneys Attorneys (Jason Whyte) — jason.whyte@deneys.co.za

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SUPPLEMENTARY ANSWERING AFFIDAVIT

I, the undersigned, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state:

1. INTRODUCTION, PROFESSIONAL STANDING, AND DESTITUTION

- 1.1 I am an adult male **Specialist Registered Nurse (NQF Level 8)** and hold a **Postgraduate Diploma in Health Services Management**. I am also a Forensic Governance Specialist and the founder of EthicHawks Forensic Governance and Compliance Consultancy.
- 1.2 I appear in person because I am **destitute**. I have no income, no transport money, and cannot afford legal representation. I attach a separate Affidavit of Destitution marked "**WW6**".
- 1.3 This affidavit supplements my answering affidavit filed on **16 April 2026**. I reserve the right to supplement further upon obtaining legal representation and discovery.

2. THE APPLICANT'S BAD FAITH: CONTRASTING DR OHM'S LETTER WITH THE OPPOSING AFFIDAVIT

- 2.1 I attach as **Annexure RESU1** a letter of recommendation from Dr P.M.J. Ohm, a team leader medical doctor practising at Mitchells Plain District Hospital Emergency Unit, where I work as a shift leader. Dr Ohm states that I have "*depth of clinical knowledge*", "*de-escalate any heated situation with a calm tone and demeanour*",

and "*protect patient dignity*". This letter constitutes objective, professional evidence of my competence, good faith, and mental fitness.

2.2 In stark contrast, the Applicant — through its representative **Mr Xolile Vincent Manyati** (a Senior Employee Relations Specialist who has never met me and is not a medical professional) — deposed to an opposing affidavit in the CCMA matter (Case No. WECT23564-25), one filed *after* my first Board-level escalation (see **Annexure GRC1** and **GRC2**). In that sworn affidavit, Mr Manyati stated under oath that my documented PTSD and depression were "**an excuse**" and "**an afterthought**" (see Annexure OA1, paragraph 6.3).

2.3 The Applicant has **never produced any medical evidence** contradicting my psychiatric condition. A specialist psychiatrist's report confirming my diagnosis and occupational detriment was provided to the Applicant. They have chosen to ignore it.

2.4 This conduct constitutes **bad faith** — it is a reckless disregard for the truth, made under oath. It demonstrates that the Applicant is prepared to swear to falsehoods to defeat a whistleblower. This Honourable Court should take judicial notice of this pattern of dishonesty when evaluating the Applicant's claim to "*irreparable harm*".

KEY LEGAL POINT — CLEAN HANDS DOCTRINE

A party seeking equitable relief must come to Court with clean hands. The Applicant's willingness to contradict an uncontested psychiatric report under oath, through a layperson deponent, denudes its application of the good faith necessary to sustain urgent interdict relief. See: *Setlogelo v Setlogelo 1914 AD 221* (requirements for interdict include absence of undue hardship and clean hands).

3. POINTS IN LIMINE

3.1 **Improper Service:** The Applicant served its founding papers on me at **08:53 on 16 April 2026** for a hearing at **10:00 the same day** — a period of only **67 minutes** to respond. I filed a notice to oppose and an answering affidavit, but could not attend court because I am destitute. The Applicant's conduct constitutes an **abuse of process**. The rule nisi should be discharged on this ground alone.

3.2 **Self-Created Urgency:** The Applicant was aware of my forensic findings since **October 2025**. It chose to take no action until I set a deadline of 16 April 2026. The urgency is **entirely self-created** and cannot found urgent relief. See: *Luna Meubels*

Vervvaardigers (Edms) Bpk v Makin (t/a Makin's Furniture Manufacturers) 1977 (4) SA 135 (W).

POINTS IN LIMINE — SUMMARY

This Honourable Court is respectfully invited to discharge the rule nisi on the following **preliminary grounds**, without reaching the merits: (1) improper service — 67-minute notice for an urgent hearing; (2) self-created urgency — applicant dormant since October 2025.

3A. FAILURE TO SATISFY INTERDICT REQUIREMENTS: EXISTENCE OF ALTERNATIVE REMEDIES

3A.1 I respectfully submit that the Applicant's request for an interdict must fail as it cannot prove the **absence of an alternative satisfactory remedy**. The Applicant is a corporate employer with full access to standard internal disciplinary mechanisms and the ordinary procedures of the Labour Court. By choosing to bypass its own internal grievance and disciplinary frameworks — and instead dragging a destitute former employee into the **Urgent High Court on 67 minutes' notice** — the Applicant is attempting to weaponise this Court to suppress a statutory protected disclosure. An urgent High Court interdict is not a substitute for standard dispute resolution.

ALTERNATIVE REMEDY — LEGAL STANDARD

A fundamental requirement for final (and interim) interdict relief is that the applicant must demonstrate the absence of an alternative, adequate remedy. See: *Setlogelo v Setlogelo 1914 AD 221*; *Olympic Passenger Services (Pty) Ltd v Ramlagan 1957 (2) SA 382 (D)*. The Applicant has access to its internal grievance mechanisms, the CCMA, and the Labour Court — all of which are adequate alternative remedies. The Applicant's deliberate election to bypass these constitutes an abuse of the urgent court roll.

4. QUANTIFICATION IN RESPONSE TO "UNQUANTIFIED" COMPLAINT

4.1 On 15 April 2026, Deneys Attorneys sent a letter (**Annexure WW1**) stating that my demand was "*unquantified*" and that this supported an allegation of extortion.

4.2 In direct response, I sent a fully itemised quantification of **R7,307,642.72 (Annexure GVW4)** to the founding affidavit).

4.3 That quantification was not a new demand. It was the **first full Rand expression** of the same claim already filed in the Labour Court on **9 April 2026**. My Labour Court Statement of Claim expressly reserved the right to quantify (**Annexure WW2**).

4.4 **A person engaged in extortion does not quantify at the request of the opposing party.** My conduct is that of a genuine litigant.

5. VOLUNTARY CORRECTION OF "LEAKAGE" — EVIDENCE OF GOOD FAITH

5.1 The Applicant criticises me for using the word "*leakage*" and then correcting myself (founding affidavit paras 36, 37, 58).

5.2 On 15 April 2026 at **20h44**, I voluntarily sent a correction email (**Annexure GVW5**): "*I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint.*"

5.3 **A bad-faith actor does not issue voluntary corrections.** My correction is direct evidence of good faith.

6. TRANSPARENCY: VOLUNTARY DISCLOSURE OF PENDING TRIAL

6.1 In **January 2024**, during recruitment, I voluntarily disclosed a pending trial relating to blood alcohol levels to the Applicant's Human Capital department (**Annexure WW3**). I provided an updated CV before employment.

6.2 The Applicant initially recruited me for the post of **Specialist Care Manager**.

6.3 However, at the point of signing the employment agreement, the Applicant unexpectedly presented me with a contract reflecting the **diminished title of "Care Coordinator"**, without any prior consultation or explanation for this sudden alteration.

6.4 Subsequently, during a recorded meeting '**naming convention**' with the Operational Manager and Human Capital, this discrepancy was formally addressed and my title was rightfully updated to reflect my NQF Level 8 qualification, establishing my correct designation as **Case Manager**.

6.5 The voluntary disclosure detailed in paragraph 6.1 is a demonstration of my **radical transparency**. I bring this to the Court's attention to categorically state that the pending trial is entirely irrelevant to these proceedings, involves no element of dishonesty or extortion, and **cannot be used by the Applicant to retroactively impugn my character** or my actions as a whistleblower.

7. PROCEDURAL INTEGRITY: RETRACTION OF MY OWN GRC ESCALATION

- 7.1 On **16 December 2025**, I sent a GRC Escalation to the Board. When I realised it was sent on a public holiday — invalidating my deadline — I immediately retracted it and apologised (**Annexure WW4**).
- 7.2 **A vexatious litigant does not retract his own documents.** I respect process and have demonstrated this consistently.

8. NECESSITY AND PROPORTIONALITY OF MY TONE

- 8.1 Between October 2025 and April 2026, I exhausted all internal remedies: grievances, Board escalation, a letter to the Group CEO. The Applicant responded with silence, suppression, and a CEO who **breached my confidentiality**.
- 8.2 By April 2026, the **9.5% premium increase** had been approved. The Department of Employment and Labour refused to unblock my benefits (**Annexure WW5**).
- 8.3 My explicit tone was **necessary and proportionate**. I threatened no violence or unlawful act — only protected disclosures to trade unions and regulators, which are expressly contemplated by the Protected Disclosures Act 26 of 2000.

9. PUBLIC INTEREST: APN 303 AND THE R3 BILLION "GOVERNANCE TAX"

- 9.1 At paragraph 40 of their Founding Affidavit, the Applicant admits that the **Gexus and DMS platforms** manage chronic care pathways and adherence data. Actuaries rely entirely on Gexus/DMS data to build statutory financial models under **Actuarial Practice Note 303 (APN 303)**.
- 9.2 As proven in my Root Cause Analysis (**Annexure VICT1**), the systemic integration gap generates **false non-adherence data**. Actuaries are compelled to apply maximum APN 303 risk loading, inflating the premium increase from the CMS-stipulated **3.3%–4% to 9.8%** then refused to **9.5%.%**.

PUBLIC INTEREST — FISCAL QUANTUM

The excessive 4.5% premium inflation constitutes an artificial "**Governance Tax**" costing approximately **1.9 million GEMS members** an estimated **R3.016 billion annually**. This is a matter of overwhelming public interest directly relevant to the Applicant's claim that it suffers any harm from my disclosures.

10. NO POPIA BREACH

- 10.1 I intend to disclose **systemic governance failures**, not individual patient records. The POPIA argument advanced by the Applicant is a deliberate overstatement designed to suppress legitimate whistleblowing activity.

11. THE PROTECTED DISCLOSURES BILL, 2026 — PUBLIC POLICY AND PROPORTIONALITY

- 11.1 On **8 April 2026**, the Minister of Justice and Constitutional Development published the **Protected Disclosures Bill, 2026** for public comment. The Bill proposes to repeal the existing PDA and introduce, inter alia, financial awards for whistleblowers of up to **25% of any monetary sanction** imposed on an employer as a result of a protected disclosure.
- 11.2 The Bill was driven by the Zondo Commission's findings that the current Act does not sufficiently protect whistleblowers. The Minister explicitly stated that the Bill aims to *"incentivise our whistleblowers"* and that *"the person who has made the disclosure could receive an amount that does not exceed one fourth of the monetary sanction"*.

POLICY PROPORTIONALITY ARGUMENT

If Parliament considers it legitimate to reward whistleblowers with up to **25% of recovered funds** (which on R3.016bn would equal **R754 million**), the Applicant's characterisation of my **R7,307,642.72 claim** (representing less than **0.24%** of the annual waste exposed) as *"extortion"* is not only legally flawed — it is **policy-blind and contrary to the express direction of national legislation**.

12. PUBLIC POLICY AND THE NATIONAL HEALTH INSURANCE (NHI) ACT

- 12.1 The **National Health Insurance Act 20 of 2023** aims to achieve universal access to quality healthcare. Its success depends entirely on the integrity of health data and governance systems.
- 12.2 The systemic Gexus/DMS integration gap corrupts clinical data, leading to operational waste and inflated claims. The R3.016 billion Governance Tax is a **direct threat to the NHI's fiscal sustainability**.

12.3 As a Specialist Registered Nurse and Health Services Manager, I am bound by the **Nursing Act 33 of 2005** to advocate for the profession and manage and coordinate nursing care effectively. My escalation of the integration gap was not insubordination — it was the **fulfilment of my professional and ethical duties**.

12.4 It would constitute a **perversion of justice** for this Court to grant an interdict that punishes me for upholding the very governance and accountability that the NHI requires to succeed.

13. THE PROTECTED DISCLOSURES ACT APPLIES TO FORMER EMPLOYEES

13.1 Section 1 of the PDA expressly includes a **"former employee"** within the definition of *"employee"*. My disclosures relate to improper conduct that occurred during my employment. The Applicant's contrary submission is accordingly incorrect in law.

14. FORMAL INVITATION TO PRODUCE DISCOVERY — PUTTING THE APPLICANT ON NOTICE

14.1 I hereby formally invite and put the Applicant on notice to produce the following documents within **5 (five) days** of service of this affidavit:

14.1.1 The unredacted GEMS CMS Business Plan justifying the **9.5% premium increase for 2026**;

14.1.2 The **APN 303 Actuarial Risk Profiling Logs** fed from the Gexus and DMS platforms covering the period October 2024 to October 2025;

14.1.3 The unedited Microsoft Teams recording titled *"Naming Convention"* (or any similar recording) containing management discussions regarding the suppression of my findings or the alteration of my job title;

14.1.4 Correction of my **UI19 form** to allow access to unemployment benefits;

14.1.5 Correction of my **Certificate of Service** to reflect my actual designation as *Case Manager / Specialist Nurse*;

14.1.6 Submission of **non-remitted UIF contributions for June 2025**.

14.2 The Applicant's refusal or failure to produce these documents will entitle this Court to **draw an adverse inference** against the Applicant.

14.3 **WARNING:** If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day in terms of **Uniform Rule 6(8)** (as permitted by

paragraph 7 of the interim order dated 16 April 2026) and move for an order discharging the rule nisi with a **punitive costs order**.

14.4 I anticipate that the Applicant may attempt to resist the production of the unredacted GEMS CMS Business Plan and APN 303 actuarial logs by citing **commercial confidentiality or privilege**.

14.4.1 Such a defence is **fatally flawed** and falls to be dismissed for two reasons:

(a) **Waiver of Confidentiality:** The Applicant's CEO recklessly distributed my protected complaint directly to the very individuals implicated in the systemic failure, thereby **destroying any veil of privilege**. The Applicant cannot weaponise "*confidentiality*" against this Court when it failed to practise it internally.

(b) **Independent Auditor / In Camera Review:** To eliminate any genuine concern regarding proprietary trade secrets, I hereby **tender** that the unredacted documents be provided to an independent, mutually agreed-upon IT auditor or actuary, or alternatively, be submitted for an *in camera* review by the presiding Judge. The objective is solely to **verify the forensic irregularities** confirming my root cause analysis, not to expose trade secrets.

14.5 I am acutely aware that discovery in motion proceedings is exceptional under **Rule 35(13)**. However, the Applicant has approached this Urgent Court seeking equitable relief (an interdict) against me.

14.6 The Applicant **cannot seek the Court's protection** while actively suppressing the exact empirical evidence — specifically the APN 303 logs and the Microsoft Teams recording — that constitutes my complete and absolute defence to their allegations of insubordination and vexatious conduct. The Applicant must approach this Court with **clean hands**. Withholding evidence that proves a respondent's statutory defence under the Protected Disclosures Act is a **gross abuse of process**.

14.7 For the avoidance of doubt, the mechanism I am utilising to anticipate the return date is not an abuse of the urgent roll, but a **direct exercise of the judicial mechanism** expressly provided to me.

14.8 During the initial hearing, the presiding Judge explicitly granted me the **"golden bridge"** to utilise Uniform Rule 6(8) to anticipate the return date upon 24 hours' notice. Should the Applicant fail to produce the requested records within the stipulated 3 days, my subsequent anticipation of the return date will be the **lawful**

execution of that judicial directive, necessitated by the Applicant's own refusal to be transparent.

DISPUTE OF FACT — PRE-EMPTED

The Applicant may attempt to manufacture a "*dispute of fact*" to stall my counter-application. My defence and counter-application are grounded not in subjective interpretation, but in **objective, immutable data**: actuarial logs, statutory prescripts (Nursing Act 33 of 2005), and mathematical quantification aligned with the Protected Disclosures Bill of 2026. The Applicant **cannot create a genuine dispute of fact** simply by issuing bare denials against objective algorithmic outputs.

15. FATAL CONTRADICTION IN THE APPLICANT'S PAPERS

15.1 The Applicant's founding affidavit designates me as "**Case Manager**". Yet on my Certificate of Service, the Applicant deliberately downgraded my title to diminish my credibility. The Applicant **cannot simultaneously rely on my status as Case Manager** to seek an interdict while erasing that same title in the Labour Court and before the Department of Employment and Labour.

FATAL CONTRADICTION — DESIGNATION INCONSISTENCY

The Applicant designates the Respondent as "**Case Manager**" in its founding affidavit while simultaneously erasing that designation on the Certificate of Service submitted to the Labour Court and the Department of Employment and Labour. See contradiction table below.

DOCUMENT	DESIGNATION APPLIED
Founding Affidavit (this application)	Case Manager
Certificate of Service (Labour Court / DEL)	Downgraded title — used to support the opposing affidavit submitted at the CCMA

16. JUDICIAL NOTICE OF PRIOR VEXATIOUS CONDUCT

16.1 This Court struck my previous urgent application (Case No. **2026-066952**) from the roll with costs, expressing its displeasure with the manner in which it was brought. The Applicant now repeats the same pattern: an application lacking genuine urgency, based on unsubstantiated allegations of "*extortion*".

16.2 As held in *Mkhatshwa v Mkhatshwa 2021 (5) SA 447 (CC)*, vexatious litigation warrants punitive costs.

**PART Q: COUNTER-APPLICATION FOR DECLARATORY RELIEF
(UNCONDITIONAL)**

17.1 I hereby institute a **counter-application for declaratory relief**. This counter-application is **not conditional** upon the Applicant proceeding with its main application. I seek these declaratory orders independently, and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **2026/086906**

17.2 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of **section 19(1)(a)(iii) of the Superior Courts Act, 2013**, which provides that a Division has jurisdiction over "*the granting of declaratory orders*". Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of **causa continentia**. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that this Court disposes of the counter-application within the very forum the Applicant itself chose.

17.3 I further submit that the relief sought is **not abstract or hypothetical**. There is a tangible and immediate advantage to be obtained:

17.3.1 The declaratory orders will immediately **break the administrative deadlock** with the Department of Employment and Labour, allowing me access to unlawfully withheld statutory social security benefits (UIF, retirement funds);

17.3.2 The declaratory orders will establish facts that will bind the Labour Court through the principles of *res judicata* and estoppel in my pending proceedings under Case Nos. **2026-077546** and **2026-083299**;

17.3.3 The declaratory orders will **vindicate my reputation** and establish my good faith, which the Applicant has falsely attacked in its founding papers and in the CCMA proceedings.

AUTHORITY: NEW CLICKS — COUNTER-APPLICATION IN ANSWERING PAPERS

The counter-application is properly brought within my answering papers. I rely on *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief, and that a counter-application may be brought within the same papers.

17.4 I rely on the Constitutional Court's decision in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief and that a counter-application may be brought within the same papers.

17.5 I further rely on the Eastern Cape High Court decision in *Eastern Cape High Court, Bhisho (Case No. 148/2020)*, where the respondents filed a counter-application within their answering affidavit seeking declaratory relief. The fact that my counter-application is not conditional on the main application proceeding is consistent with the inherent jurisdiction of this Court to grant declaratory relief *whenever it is just and convenient to do so*.

17.6 I expressly confirm that I will pursue this counter-application **regardless of whether the Applicant withdraws its main application**. The declaratory relief is necessary to remedy the ongoing harm I suffer and to break the administrative deadlock that the Applicant has created through its unlawful conduct.

17.7 For the avoidance of doubt, and to pre-empt any dilatory points regarding **non-joinder**, I confirm that no relief or costs are sought against the Department of Employment and Labour, the Council for Medical Schemes, or the National Department of Health. Their mention in these papers is strictly contextual — to demonstrate the **immediate administrative harm** I am suffering and the national public interest at stake. Consequently, their formal joinder is **not required in law** for this Court to grant the declaratory relief against the Applicant.

PART R: PRAYER FOR DECLARATORY RELIEF (COUNTER-APPLICATION)

WHEREFORE the Respondent prays that this Honourable Court grants the following declaratory findings in the counter-application:

R.1 That the Root Cause Analysis (**Annexure VICT1**) and the subsequent escalations regarding the Gexus/DMS integration gap constitute **Protected Disclosures made in**

good faith and in the public interest within the meaning of the Protected Disclosures Act 26 of 2000;

R.2 That the Respondent's voluntary correction of the word "*leakage*" (**Annexure GVV5**) and his voluntary retraction of the GRC Escalation due to a procedural error (**Annexure WW4**) are evidence of **good faith**, and the Applicant's reliance on these events to allege bad faith is an **abuse of process**;

R.3 That the Respondent's quantification of **R7,307,642.72** on 15 April 2026 was a **good-faith articulation** of his existing Labour Court claim (Case No. **2026-083299**) and does **not** constitute extortion;

R.4 That the Applicant is ordered to comply with the formal invitation to produce discovery set out in paragraph 14 above within **5 (five) days** of this order;

R.5 That the Respondent be granted any **further and/or alternative relief** as this Honourable Court deems just and equitable;

R.6 That the **costs of the counter-application** be paid by the Applicant on the scale as between **attorney and client**.

R.7 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of section 19(1)(a)(iii) of the Superior Courts Act, 2013. Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of causa continentia. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that the High Court disposes of the counter-application within the very forum the Applicant itself chose.

PART S: PRAYER FOR RELIEF IN THE MAIN APPLICATION

(Opposition to the Applicant's interdict — this remains unchanged)

In addition to the counter-application, the Respondent prays that this Honourable Court:

S.1 **Discharge the rule nisi** issued on 16 April 2026 and set aside the interim interdict in its entirety, with costs on the scale as between **attorney and client**, such costs to be paid by the Applicant;

S.2 Grant the **declaratory findings** set out in paragraph 17 above;

S.3 Order the Applicant to comply with the formal invitation to produce discovery set out in paragraph 14 within **5 (five) days**;

S.4 Grant any further and/or alternative relief as this Honourable Court deems just and equitable.

S5. An order directing that the declaratory relief sought herein be granted on an urgent basis, as this Honourable Court is the only forum presently seized with the factual matrix capable of intervening to break the ongoing administrative deadlock with the Department of Employment and Labour. It is respectfully submitted that immediate judicial intervention by this Court is the sole remedy available to halt the continuous, irreparable financial prejudice and destitution being suffered by the Respondent.

DEPONENT

SR. WILBUR W. MATTHEE

Specialist Registered Nurse (NQF Level 8)

Forensic Governance Specialist

COMMISSIONER OF OATHS

Full name: _____

Address: _____

Capacity: _____

Cell: _____

EXHIBIT LIST

EXHIBIT	DESCRIPTION
RESU1	Letter of recommendation – Dr P.M.J. Ohm (Mitchells Plain District Hospital Emergency Unit)
OA1	CCMA opposing affidavit (Xolile Vincent Manyati, Case No. WECT23564-25) – paragraph 6.3 alleging PTSD/depression was "an excuse" and "an afterthought"
GRC1	First Board-level GRC Escalation – filed prior to Manyati opposing affidavit
GRC2	Second Board-level GRC Escalation – filed prior to Manyati opposing affidavit
WW1	Letter from Deneys Attorneys dated 15 April 2026 alleging demand was "unquantified"
WW2	Labour Court Statement of Claim – reservation of right to quantify clause
WW3	Vacancy email chain – January 2024 voluntary disclosure of pending trial

EXHIBIT	DESCRIPTION
WW4	GRC Escalation (16 December 2025) and voluntary retraction / apology (17 December 2025)
WW5	Department of Employment and Labour email – 15 April 2026 (refusal to release benefits)
WW6	Affidavit of Destitution (filed herewith)
GVW4	Itemised quantification of R7,307,642.72 (already filed in founding papers)
GVW5	Correction email of 15 April 2026 at 20h44 withdrawing word "leakage"
VICT1	Root Cause Analysis: Gexus/DMS Integration Gap – APN 303 actuarial impact
EXIT3	Exit documentation / Certificate of Service (erroneous designation)
DEC1	Supporting declaration (already filed in founding papers)

AFFIDAVIT OF DESTITUTION
(EXHIBIT WW6)

I, **Wilbur William Matthee**, swear under oath that:

1. I have no current income from employment or any other source.
2. I have no savings, investments, or assets of significant value.
3. I cannot afford transport to attend court proceedings.
4. I cannot afford legal representation.
5. I am currently dependent on family and charitable assistance for basic necessities.
6. I request that this Honourable Court accept my papers without payment of filing fees and dispense with any requirement to pay security for costs.

Signed: _____

Date: _____

Sworn before me at _____ on this _____ day of _____ 2026.

Commissioner of Oaths: _____